

[1 & 2 GEO. 5.] *Electric Lighting Orders Confirmation* [Ch. clx.]
(No. 1) Act, 1911.



CHAPTER clx.

An Act to confirm certain Provisional Orders made by the Board of Trade under the Electric Lighting Acts 1882 and 1888 relating to Accrington (Extension) Aldeburgh Ashford Blandford Forum Budleigh Salterton Carlisle (Extension) Chichester (Extension) Cirencester Leominster and Newcastle-upon-Tyne (Extension).

A.D. 1911.

[18th August 1911.]

WHEREAS under the authority of the Electric Lighting Acts 1882 and 1888 the Board of Trade have made the several Provisional Orders set out in the schedule to this Act:

45 & 46 Vict.
c. 56.
51 & 52 Vict.
c. 12.

And whereas a Provisional Order made by the Board of Trade under the authority of the said Acts is not of any validity or force whatever until the confirmation thereof by Act of Parliament:

And whereas it is expedient that the several Provisional Orders made by the Board of Trade under the authority of the said Acts as set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Electric Lighting Orders Confirmation (No. 1) Act 1911.

2. The several Orders as amended and set out in the schedule to this Act are hereby confirmed and the same shall from and after the passing and subject to the provisions of this Act have full validity and effect.

Orders in
schedule
confirmed.

[Ch. clx.] *Electric Lighting Orders Confirmation*. [1 & 2 GEO. 5.]
(No. 1) Act, 1911.

A.D. 1911.

For pro-
tection of
Lancashire
County
Council.

3.—(1) Nothing in the Accrington Corporation Electric Lighting (Extension) Order 1911 confirmed by this Act shall in any way limit or affect the powers of the Lancashire County Council (in this section referred to as “the county council”) to rebuild alter widen or repair the structure of any bridge upon which any work by the Order authorised shall be constructed or impose upon the county council any liability which was not by law imposed upon them prior to the commencement of the Order.

(2) If at any time the county council require to carry out works for rebuilding altering widening or repairing any bridge which might involve interference with any portion of the undertaking by the Order authorised they shall prior to the commencement of such works give the Undertakers one month’s notice of their intention to carry out such works and if in order to avoid interruption to the supply by the Undertakers of electrical energy it is in the opinion of the county bridge-master necessary to temporarily remove the mains and other electrical appliances belonging to the Undertakers from such bridge then the Undertakers shall (and they are hereby authorised so to do) at their own expense temporarily carry their cables and wires across such bridge overhead or at the side thereof in such a manner as will not be a danger or inconvenience to the public or unreasonably interfere with the works to be carried out by the county council.

(3) When the rebuilding altering widening or repairing of such bridge shall have been completed the Undertakers shall have the same rights and powers with regard to such bridge and its approaches as they had before the works were carried out.

(4) If any dispute arises between the county council and the Undertakers with regard to this section the same shall be determined by an arbitrator to be appointed on the application of either party by the Board of Trade.

For pro-
tection of
West Sussex
County
Council.

4.—(1) Nothing in the Chichester Electric Lighting (Extension) Order 1911 confirmed by this Act shall in any way limit or affect the powers of the county council of West Sussex (in this section referred to as “the county council”) to rebuild alter widen or repair the structure of any bridge upon which

[1 & 2 GEO. 5.] *Electric Lighting Orders Confirmation* [Ch. clx.]
(No. 1) *Act*, 1911.

any work by the Order authorised shall be constructed or impose upon the county council any liability which was not by law imposed upon them prior to the commencement of the Order. A.D. 1911.

(2) If at any time the county council require to carry out works for rebuilding altering widening or repairing any bridge which might involve interference with any portion of the undertaking by the Order authorised they shall prior to the commencement of such works give the Undertakers one month's notice of their intention to carry out such works and if in order to avoid interruption to the supply by the Undertakers of electrical energy it is in the opinion of the county surveyor necessary to temporarily remove the mains and other electrical appliances belonging to the Undertakers from such bridge then the Undertakers shall (and they are hereby authorised so to do) at their own expense temporarily carry their cables and wires across such bridge overhead or at the side thereof in such a manner as will not be a danger or inconvenience to the public or unreasonably interfere with the works to be carried out by the county council.

(3) When the rebuilding altering widening or repairing of such bridge shall have been completed the Undertakers shall have the same rights and powers with regard to such bridge and its approaches as they had before the works were carried out.

(4) If any dispute arises between the county council and the Undertakers with regard to this section the same shall be determined by an arbitrator to be appointed on the application of either party by the Board of Trade.

5.—(1) Nothing in the Cirencester Electric Lighting Order 1911 confirmed by this Act shall in any way limit or affect the powers of the Gloucestershire County Council (in this section referred to as "the county council") to rebuild alter widen or repair the structure of any bridge upon which any work by the Order authorised shall be constructed or impose upon the county council any liability which was not by law imposed upon them prior to the commencement of the Order. For protection of Gloucestershire County Council.

(2) If at any time the county council require to carry out works for rebuilding altering widening or repairing any bridge which might involve interference with any portion of the undertaking by the Order authorised they shall prior to the commencement of such works give the Undertaker one month's

[Ch. clx.] *Electric Lighting Orders Confirmation* [1 & 2 Geo. 5.]
(No. 1) Act, 1911.

A.D. 1911. notice of their intention to carry out such works and if in order to avoid interruption to the supply by the Undertaker of electrical energy it is in the opinion of the county council necessary to remove temporarily the mains and other electrical appliances belonging to the Undertaker from such bridge then the Undertaker shall (and he is hereby authorised so to do) at his own expense temporarily carry his cables and wires along or across such bridge overhead or at the side thereof in such a manner as will not be a danger or inconvenience to the public or unreasonably interfere with the works to be carried out by the county council and the county council shall not be required to pay compensation to the Undertaker for any loss or damage to which he may be put in consequence of the reasonable exercise of the powers of the county council or of the removal of such mains and appliances.

(3) When the rebuilding altering widening or repairing of such bridge shall have been completed the Undertaker shall have the same rights and powers with regard to such bridge and its approaches as he had before the works were carried out.

(4) If any dispute arises between the county council and the Undertaker with regard to this section the same shall be determined by an arbitrator to be appointed on the application of either party by the Board of Trade.

SCHEDULE.

A.D. 1911.

LIST OF ORDERS.

1. ACCRINGTON (EXTENSION).—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Mayor Aldermen and Burgesses of the Borough of Accrington.
2. ALDEBURGH.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to Messrs. Christy Brothers and Company Limited.
3. ASHFORD.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the East Kent Electric Supply Company Limited.
4. BLANDFORD FORUM.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to Messrs. J. and W. Purves.
5. BUDLEIGH SALTERTON.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to John Archibald Purves and William Thompson Purves.
6. CARLISLE (EXTENSION).—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Mayor Aldermen and Citizens of Carlisle.
7. CHICHESTER (EXTENSION).—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Chichester Electric Light and Power Company Limited.
8. CIRENCESTER.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to James Herbert Edwards.
9. LEOMINSTER.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to James Herbert Edwards.
10. NEWCASTLE-UPON-TYNE (KENTON EXTENSION). — Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Newcastle-upon-Tyne Electric Supply Company Limited.

[Ch. clx.] *Electric Lighting Orders Confirmation* [1 & 2 GEO. 5.]
(No. 1) Act, 1911.

A.D. 1911. ACCRINGTON CORPORATION ELECTRIC LIGHTING
(EXTENSION).

Accrington. Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Mayor Aldermen and Burgesses of the Borough of Accrington in respect of the Urban District of Clayton-le-Moors and the Parish of Altham in the Rural District of Burnley both in the County of Lancaster.

Short and
collective
titles.

1. This Order may be cited as the Accrington Corporation Electric Lighting (Extension) Order 1911 and this Order and the Accrington Corporation Electric Lighting Order 1890 (herein-after called "the principal Order") may be cited together as the Accrington Corporation Electric Lighting Orders 1890 and 1911.

Incorporation of Electric Lighting (Clauses) Act 1899.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 are (with the exception of sections 83 and 84 of that schedule) incorporated with and form part of this Order and the undertaking authorised by the principal Order and the Undertakers in respect thereof shall be subject to those provisions and so much of the principal Order as is inconsistent with those provisions or with this Order is hereby repealed without prejudice to anything done or suffered thereunder. Provided that sections 23 and 65 of the said schedule shall apply to the undertaking within the area added by this Order as if the Undertakers were the local authority.

Area of
supply.

3. There shall be added to the area of supply for the purposes of the principal Order as amended by this Order the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

Compulsory
works.

4. Subject to the provisions of this Order there shall be added to the list of streets and parts of streets mentioned in the Second Schedule to the principal Order (being the streets and parts of streets throughout which the Undertakers are to lay distributing mains) the streets or parts of streets mentioned in the Second Schedule to this Order.

Power to
break up
tramways.

5. Subject to the provisions of this Order the Undertakers are specially authorised to break up the tramways mentioned in the Third Schedule to this Order.

Limitation of
prices.

6. The mayor aldermen and burgesses of the borough of Accrington shall not be entitled to charge higher prices for energy supplied within the area of supply under this Order than are charged by them for the time being for a corresponding supply within the said borough.

[1 & 2 GEO. 5.] *Electric Lighting Orders Confirmation* [Ch. clx.]
(No. 1) Act, 1911.

7.—(1) The Clayton-le-Moors Urban District Council (herein-after called "the council") may within six months before the expiration of a period of fourteen years computed from the 31st day of March 1912 or before the expiration of any subsequent period of seven years by notice in writing require the Undertakers to sell and thereupon the Undertakers shall sell to the council so much of their undertaking as is within the district of the council upon terms of paying the then value of all lands buildings works materials and plant of the Undertakers suitable to and used by them for the purposes of their undertaking within the said district.

A.D. 1911.
Accrington.
Power to
purchase by
Clayton-le-
Moors Dis-
trict Council.

(2) The provisions of section 2 of the Electric Lighting Act 1888 shall mutatis mutandis apply in respect of the said purchase except that no allowance shall be made for any loss occasioned by severance.

8.—(1) The council shall not in exercise of the special power of purchase conferred upon them by this Order or of the power of purchase conferred upon them by section 2 of the Electric Lighting Act 1888 be entitled to acquire any trunk mains laid by the Undertakers partly within and partly outside the district of the council or any apparatus connected therewith and such trunk mains and apparatus shall accordingly be excluded in arriving at the price to be paid by the council to the Undertakers.

Restriction
on power
and effect of
purchase.

(2) Notwithstanding such purchase the Undertakers may for the purpose of supplying energy to other parts of their area of supply continue to use such trunk mains and apparatus and shall retain the same power of relaying repairing altering or removing any such trunk mains and renewing or repairing any such apparatus as if the power of purchase had not been exercised.

9. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

Commence-
ment of
Order.

SCHEDULES.

FIRST SCHEDULE.

AREA ADDED BY THIS ORDER TO THE AREA OF SUPPLY UNDER THE
PRINCIPAL ORDER.

The urban district of Clayton-le-Moors in the county of Lancaster.

The parish of Altham in the rural district of Burnley in the same
county.

[Ch. clx.] *Electric Lighting Orders Confirmation* [1 & 2 GEO. 5.]
(No. 1) Act, 1911.

A.D. 1911.

SECOND SCHEDULE.

Accrington.

List of streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order.

In the urban district of Clayton-le-Moors—

Whalley Road or Napoleon Street from the boundary of the parish of Altham in a northerly direction to Pickup Street Pickup Street from Whalley Road to Barnes Square Barnes Square Church Street Blackburn Road from Whalley Road in a westerly direction to the Leeds and Liverpool Canal Bridge.

In the parish of Altham—

Whalley Road.

THIRD SCHEDULE.

Tramways which by virtue of this Order may be broken up by the Undertakers in pursuance of the special powers granted by the principal Order.

The tramways of the Accrington Corporation.

ALDEBURGH ELECTRIC LIGHTING.

Aldeburgh. *Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to Messrs. Christy Brothers and Company Limited in respect of the Borough of Aldeburgh in the County of Suffolk.*

Short title. 1. This Order may be cited as the Aldeburgh Electric Lighting Order 1911.

Incorporation of Electric Lighting (Clauses) Act 1899. 2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order.

Undertakers. 3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are Messrs. Christy Brothers and Company Limited of Chelmsford in the county of Essex.

Area of supply. 4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting

[1 & 2 GEO. 5.] *Electric Lighting Orders Confirmation* [Ch. clx.]
(No. 1) Act, 1911.

(Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

A.D. 1911.

Aldeburgh.

5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets and parts of streets not repairable by the local authority which are mentioned in the Second Schedule to this Order.

Power to
break up
streets.

6. The streets throughout which suitable and sufficient distributing mains for the purposes of general supply are to be laid down within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order.

Compulsory
works.

7. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order.

Maximum
prices.

8. The sum to be deposited or secured in pursuance of section 5 of the schedule to the Electric Lighting (Clauses) Act 1899 is one hundred pounds.

Deposit.

9.—(1) The powers given by this Order shall not be exercised unless within twelve months or such extended period not exceeding in the whole fifteen months as the Board of Trade may allow after the passing of the Act confirming this Order the Undertakers transfer the undertaking to a company to be registered under the Companies (Consolidation) Act 1908 and to be called the Aldeburgh Electric Supply Company Limited.

Powers not
to be exer-
cised unless
undertaking
transferred
to a registered
company.

(2) Within that period the Undertakers may transfer and the company to whom the transfer is to be made may take a transfer of the undertaking with the consent of and on such terms and conditions as may be approved by the Board of Trade by deed approved by that Board.

(3) On any such transfer the rights powers authorities obligations and liabilities of the Undertakers in respect of the undertaking shall be transferred to and may be exercised by and shall attach to the company to whom the transfer is made and that company shall subject to the provisions of this Order become the Undertakers for the purposes of this Order.

(4) If the transfer directed by this Order has not been made before the expiration of the period limited in that behalf the Board of Trade may revoke this Order at the expiration of that period.

[Ch. clx.] *Electric Lighting Orders Confirmation* [1 & 2 GEO. 5.]
(No. 1) Act, 1911.

A.D. 1911.

Aldeburgh.

Copy of proposed transfer for local authority.

Purchase by local authority.

10. When the Undertakers submit the proposed deed of transfer to the Board of Trade in pursuance of the provision in that behalf herein-before contained a copy thereof shall at the same time be sent by them to the local authority.

11. After the transfer herein-before directed has been made and the said company have become the Undertakers for the purposes of this Order the following provisions shall have effect:—

(1) The local authority may on giving twelve months' notice in writing to the Undertakers terminating at the expiration of twenty-one twenty-eight or thirty-five years from the date of the said transfer require the Undertakers to sell and thereupon the Undertakers shall sell to them the undertaking authorised by this Order (including all lands buildings works materials and plant suitable to and used by the Undertakers for the purposes of the undertaking) upon the terms of the local authority paying to the Undertakers an amount equal to the fair market value of the undertaking as a going concern that value to be determined in default of agreement by arbitration:

(2) The Board of Trade may determine any question which arises with reference to the purchase which is not determined by arbitration and in default of agreement as to the date on which the purchase is to take effect may fix that date:

(3) From the date on which the purchase takes effect the undertaking shall vest in the local authority freed from all debts mortgages or other similar obligations of the Undertakers or attaching to the undertaking and the powers of the Undertakers in relation to the supply of electricity within the area of supply under this Order shall cease and shall vest in the local authority who shall become the Undertakers for the purposes of this Order:

(4) The power of purchase given by this section shall be in addition to and not in derogation of the power of the local authority to purchase under section 2 of the Electric Lighting Act 1882.

Commencement of Order.

12. Except for the purpose of enabling the transfer directed by this Order to be made this Order shall not come into force notwithstanding the confirmation thereof by Parliament until the day when the transfer takes effect and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

SCHEDULES.

A.D. 1911.

Aldeburgh.

FIRST SCHEDULE.

AREA OF SUPPLY.

The whole of the borough of Aldeburgh as constituted at the commencement of this Order.

SECOND SCHEDULE.

List of streets and parts of streets not repairable by the local authority which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

Park Road from east wall of school playground to Victoria Road
Prior's Hill Road East Branch Road from Park Road to Victoria Road
footpath along west side of inclosure No. 107 the road from inclosure
No. 99 to inclosure No. 107 the lane leading from Park Road to the
inclosure No. 85 Park Lane from Park Road to Lee Road Crescent
Road Lee Road Fawcett Road The Terrace back paths between
(a) Lee Road and Fawcett Road (b) Fawcett Road and The Terrace
(c) Champion Road and Lee Road Beaconsfield Road Hartington Road
Champion Road Crespigney Road Alde Lane.

The Nos. of inclosures mentioned above refer to the numbers
on the $\frac{1}{2500}$ Ordnance Map Suffolk (East) Sheet LX. — 16 Second
Edition 1904.

THIRD SCHEDULE.

*List of streets throughout which suitable and sufficient distributing
mains for the purposes of general supply are to be laid down
within a period of two years after the commencement of this
Order.*

Victoria Road and High Street.

[Ch. clx.] *Electric Lighting Orders Confirmation* [1 & 2 Geo. 5.]
(No. 1) Act, 1911.

A.D. 1911.

Aldeburgh.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electromotive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter :—

(a) For lighting purposes for any amount up to twenty units ten shillings and for each unit over twenty units sixpence :

(b) For power and heating purposes for each unit threepence :

Provided that if in any year during which the Undertakers are a limited company that company pays dividends exceeding five pounds per centum per annum upon the amount then paid up in respect of their share capital the price charged by the Undertakers in the twelve months succeeding the date upon which that dividend is paid shall be reduced by one-eighth of a penny per unit for power and heating and by one farthing per unit for lighting and other purposes in respect of each one per cent. by which the dividend so paid exceeds five per cent.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

ASHFORD ELECTRIC LIGHTING.

A.D. 1911.

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the East Kent Electric Supply Company Limited in respect of the Urban District of Ashford and portions of the Rural District of East Ashford all in the County of Kent.

Ashford.

1. This Order may be cited as the Ashford Electric Lighting Order 1911. Short title.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order. Incorporation of Electric Lighting (Clauses) Act 1899.

3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the East Kent Electric Supply Company Limited being a company registered under the Companies Acts with limited liability whose temporary registered office is situate at numbers 36 to 38 New Street Ashford in the county of Kent. Undertakers.

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade. Area of supply.

5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets and parts of streets not repairable by the local authority which are mentioned in the Second Schedule to this Order. Power to break up streets.

6. The streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order. Compulsory works.

7. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order. Maximum prices.

8.—(1) The urban district council of Ashford (herein-after called "the council") may within six months after the expiration of thirty Purchase by Ashford Urban District Council.

[Ch. clx.] *Electric Lighting Orders Confirmation* [1 & 2 GEO. 5.]
(No. 1) Act, 1911.

A.D. 1911. or thirty-five years from the commencement of this Order by notice in
Ashford. writing require the Undertakers to sell and thereupon the Undertakers
shall sell to them so much of the undertaking authorised by this Order
as is within the Ashford Urban District upon the terms of paying the
value thereof as a going concern such value to be determined in
case of difference by arbitration under the provisions of the Lands
Clauses Acts.

(2) The Board of Trade may determine any question which may
arise with reference to the purchase and which is not to be determined
by arbitration and in default of agreement as to the date on which the
purchase is to take effect may fix that date.

(3) From the date on which the purchase takes effect so much of
the undertaking as is situate in the said district shall vest in the
council freed from all debts mortgages or other similar obligations of
the Undertakers or attaching to the undertaking and the powers of the
Undertakers under the principal Act or this Order and in relation to
the supply of electricity within the said district shall absolutely cease
and determine and shall vest in the council who shall become the
Undertakers in respect of that district for the purposes of this Order.

(4) The power of purchase given by this section shall be in addition
to and not in derogation of the power of the council to purchase under
the Electric Lighting Act 1888.

Commence-
ment of
Order.

9. This Order shall come into force upon the day when the Act
confirming this Order is passed and that day for the purposes of
the Electric Lighting (Clauses) Act 1899 shall be the commencement
of this Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The urban district of Ashford and the parishes of Kennington and
Willesborough in the rural district of East Ashford as respectively
constituted at the commencement of this Order all in the county of
Kent.

[1 & 2 GEO. 5.] *Electric Lighting Orders Confirmation* [Ch. clx.]
(No. 1) Act, 1911.

SECOND SCHEDULE.

A.D. 1911.

Ashford.

List of streets and parts of streets not repairable by the local authority which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

URBAN DISTRICT OF ASHFORD.

Mabledon Avenue (from Linden Road to Hythe Road) Wall Road Queen's Road (from Wall Road to Magazine Road) Jemmett Road William Road Bond Road Extension Rugby Gardens road off Victoria Road to the dairy the several roads upon the Barrow Hill Estate King's Avenue Sackville Crescent (from No. 12 to King's Avenue) road leading from Tufton Street to Godinton Road Eastern Avenue James Street Sydney Street the bridges over the South Eastern and Chatham Railway in Godinton Road Chart Road Hythe Road and Maidstone Road the two bridges carrying East Hill over the River Great Stour and the River East Stour Trumpet Bridge Beaver Road bridge over River East Stour between Torrington Road and Rugby Gardens.

THIRD SCHEDULE.

List of streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order.

URBAN DISTRICT OF ASHFORD.

Bank Street High Street Castle Street North Street and New Street Albert Road Elwick Road Marsh Street East Hill Canterbury Road Hythe Road to the boundary of the urban district Gore Hill to the boundary of the urban district.

PARISH OF WILLESBOROUGH.

Hythe Road from the boundary of the Ashford Urban District to Church Road road leading from the junction of Hythe Road with Church Road in a westerly and north-westerly direction to a point opposite the East Ashford Infirmary.

PARISH OF KENNINGTON.

Faversham Road road leading from the boundary of the parish at Bybrook to Faversham Road.

[Ch. clx.] *Electric Lighting Orders Confirmation* [1 & 2 Geo. 5.]
(No. 1) Act, 1911.

A.D. 1911.

Ashford.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression “unit” shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units thirteen shillings and fourpence and for each unit over twenty units eightpence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

BLANDFORD FORUM ELECTRIC LIGHTING.

*Blandford
Forum.*

*Provisional Order granted by the Board of Trade under the
Electric Lighting Acts 1882 and 1888 to Messrs. J. and
W. Purves in respect of the Borough of Blandford Forum
in the County of Dorset.*

Short title.

1. This Order may be cited as the Blandford Forum Electric Lighting Order 1911.

Incorporation
of Electric
Lighting
(Clauses) Act
1899.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order.

Undertakers.

3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are Messrs. J. and W. Purves of 11 Bedford Circus Exeter in the county of Devon.

[1 & 2 GEO. 5.] *Electric Lighting Orders Confirmation* [Ch. clx.]
(No. 1) Act, 1911.

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

A.D. 1911.

*Blandford
Forum.*

Area of
supply.

5. The streets and part of street throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Second Schedule to this Order.

Compulsory
works.

6. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Third Schedule to this Order.

Maximum
prices.

7.—(1) The powers given by this Order shall not be exercised unless within the time herein-after mentioned the Undertakers transfer the undertaking to the company herein-after mentioned.

Special
power of
transfer of
undertaking.

(2) At any time within twelve months (or such extended period not exceeding in the whole fifteen months as the Board of Trade may allow) after the commencement of this Order the Undertakers may with the consent of and upon such terms and conditions and for such period as may be approved by the Board of Trade by deed to be approved by that Board transfer the undertaking authorised by this Order to a company intended to be registered under the Companies (Consolidation) Act 1908 with limited liability and to be called the Blandford Forum and District Electric Supply Company Limited and on such transfer the rights powers authorities obligations and liabilities of the Undertakers in respect of the undertaking shall be transferred to and may be exercised by and shall attach to the said company and that company shall subject to the provisions of this Order become the Undertakers for the purposes of this Order.

(3) If the transfer to the said company is not completed within the time herein-before mentioned the Board of Trade may revoke this Order.

8.—(1) The local authority may on giving twelve months' notice in writing to the Undertakers terminating at the expiration of the twelfth or any subsequent year from the commencement of this Order require the Undertakers to sell and thereupon the Undertakers shall sell to them the undertaking authorised by this Order (including all lands buildings works materials and plant suitable to and used by the

Purchase
by local
authority.

[Ch. clx.] *Electric Lighting Orders Confirmation* [1 & 2 GEO. 5.]
(No. 1) Act, 1911.

A.D. 1911. Undertakers for the purposes of the undertaking) upon the terms of
Blandford the local authority paying to the Undertakers an amount equal to
Forum. the fair market value of the undertaking as a going concern that
value to be determined in default of agreement by arbitration at the
cost and expense of the Undertakers.

(2) The Board of Trade may determine any question which arises
with reference to the purchase which is not determined by arbitration
and in default of agreement as to the date on which the purchase is
to take effect may fix that date.

(3) From the date on which the purchase takes effect the under-
taking shall vest in the local authority freed from all debts mortgages
or other similar obligations of the Undertakers or attaching to the
undertaking and the powers of the Undertakers in relation to the
supply of electricity within the area of supply under this Order shall
cease and shall vest in the local authority who shall become the
Undertakers for the purposes of this Order.

(4) The power of purchase given by this section shall be in addition
to and not in derogation of the power of the local authority to
purchase under section 2 of the Electric Lighting Act 1888.

Deposit.

9. The sum to be deposited or secured in pursuance of section 5
of the schedule to the Electric Lighting (Clauses) Act 1899 is two
hundred pounds.

Commence-
ment of
Order.

10. Except for the purpose of enabling the said transfer to be made
this Order shall not come into force notwithstanding the confirmation
thereof by Parliament until the day when the said transfer takes
effect and that day for the purposes of the Electric Lighting (Clauses)
Act 1899 shall be the commencement of this Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The whole of the borough of Blandford Forum as constituted at
the commencement of this Order.

SECOND SCHEDULE.

A.D. 1911.

*Blandford
Forum.*

List of streets and part of street throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order.

Market Place East Street Damary Street Park Road White Cliff Mill Street Salisbury Street from Market Place to end of Bryanston Street and West Street.

THIRD SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression “unit” shall mean the energy contained in a current of one thousand ampères flowing under an electromotive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter:—

(A) For lighting purposes—

For any amount up to twenty units ten shillings and for each unit over twenty units sixpence:

(B) For power and heating purposes—

For each unit threepence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

[Ch. clx.] *Electric Lighting Orders Confirmation* [1 & 2 GEO. 5.]
(No. 1) Act, 1911.

A.D. 1911.

BUDLEIGH SALTERTON ELECTRIC LIGHTING.

*Budleigh
Salterton.*

*Provisional Order granted by the Board of Trade under the
Electric Lighting Acts 1882 and 1888 to John Archibald
Purves and William Thompson Purves in respect of the
Urban District of Budleigh Salterton in the County of
Devon.*

Short title.

1. This Order may be cited as the Budleigh Salterton Electric Lighting Order 1911.

Incorporation
of Electric
Lighting
(Clauses) Act
1899.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order.

Undertakers.

3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are John Archibald Purves and William Thompson Purves of No. 11 Bedford Circus in the city of Exeter.

Area of
supply.

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

Power to
break up
streets.

5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets not repairable by the local authority which are mentioned in the Second Schedule to this Order.

Compulsory
area.

6. The streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order.

Maximum
prices.

7. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order.

Power to
use land for
erection of
generating
stations.

8. The Undertakers may after they shall have acquired the land described in the Fifth Schedule to this Order use the same for the purposes of the undertaking authorised by this Order and may thereon erect construct maintain use and work a station or stations together

[1 & 2 GEO. 5.] *Electric Lighting Orders Confirmation* [Ch. clx.]
(No. 1) Act, 1911.

with all such buildings engines batteries dynamos accumulators and other plant machinery apparatus works and conveniences as may be necessary or suitable for generating electricity for the purpose of giving a supply under this Order.

A.D. 1911.

*Budleigh
Salterton.*

9.—(1) The powers given by this Order shall not be exercised unless within twelve months or such extended period not exceeding in the whole fifteen months as the Board of Trade allow after the commencement of the Act confirming this Order the Undertakers transfer the undertaking authorised by this Order to a company to be registered under the Companies (Consolidation) Act 1908 and to be called the Budleigh Salterton Electric Light and Power Company Limited.

Special power
of transfer of
undertaking.

(2) Within that period the Undertakers may transfer and the said company may accept a transfer of the undertaking with the consent of and upon such terms and conditions as may be approved by the Board of Trade by deed to be approved by that Board and upon the date on which such transfer takes effect the rights powers authorities obligations and liabilities of the Undertakers in respect of the undertaking shall subject to the provisions contained in the deed of transfer be transferred to and may be exercised by and shall attach to the said company and that company shall subject to the provisions of this Order become the Undertakers for the purposes of this Order.

(3) If the transfer authorised by this Order has not been completed within the period limited in that behalf in this section the Board of Trade may revoke this Order upon the expiration of that period.

10. When the said company shall have become the Undertakers for the purposes of this Order the following provisions shall have effect :—

Purchase
by local
authority.

(1) The local authority may by giving twelve months' previous notice in writing to the Undertakers terminating at the expiration of a period of fifteen or twenty-two or twenty-nine or thirty-six years from the date of the said transfer require the Undertakers to sell and thereupon the Undertakers shall sell to them the undertaking authorised by this Order (including all lands buildings works materials and plant suitable to and used by the Undertakers for the purposes of the undertaking) upon the terms of the local authority paying to the Undertakers an amount equal to the fair market value of the undertaking as a going concern :

(2) If any question arises as to the price to be paid on any such purchase as aforesaid that question shall be determined by arbitration :

[Ch. clx.] *Electric Lighting Orders Confirmation* [1 & 2 GEO. 5.]
(No. 1) Act, 1911.

A.D. 1911.

*Budleigh
Salterton.*

(3) The Board of Trade may determine any other question which may arise with reference to such purchase and in default of agreement as to the date on which the purchase is to take effect may fix that date :

(4) On and as from the date on which the purchase takes effect the undertaking shall vest in the local authority free from all debts mortgages or other similar obligations of the Undertakers and the powers of the Undertakers in relation to the supply of electricity under this Order shall cease and determine and shall vest in the local authority who shall become the Undertakers for the purposes of this Order :

(5) Nothing in this section shall affect the power of the local authority to purchase under section 2 of the Electric Lighting Act 1888.

Deposit.

11. The sum to be deposited in pursuance of section 5 of the schedule to the Electric Lighting (Clauses) Act 1899 is two hundred pounds.

Commence-
ment of
Order.

12. Except for the purpose of enabling the said transfer to be made this Order shall not come into force until the day when the transfer takes effect and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The urban district of Budleigh Salterton as constituted at the commencement of this Order.

SECOND SCHEDULE.

List of streets not repairable by the local authority which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

Landsdown Road private road adjacent to London and South Western Railway Station from junction with Station Road past the station and across bridge to junction with Greenway Lane.

THIRD SCHEDULE.

A.D. 1911.

*Budleigh
Salterton.*

List of streets and parts of streets throughout which suitable and sufficient distributing mains for the purposes of general supply are to be laid down within a period of two years after the commencement of this Order.

Halse Hill from junction with West Hill Road to site of generating station West Hill High Street Fore Street The Parade from junction with Fore Street to junction with Marine Parade Fore Street Hill from Fore Street to junction with East Terrace.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression “unit” shall mean the energy contained in a current of one thousand ampères flowing under an electromotive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter:—

(a) For lighting purposes—

For any amount up to twenty units ten shillings and for each unit over twenty units sixpence:

(b) For power and heating purposes—

For each unit threepence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

[Ch. clx.] *Electric Lighting Orders Confirmation* [1 & 2 GEO. 5.]
(No. 1) Act, 1911.

A.D. 1911.

FIFTH SCHEDULE.

*Budleigh
Salterton.*

Land for the erection of generating station or stations.

A piece of land containing an area of 10,000 square feet or thereabouts situate and being part of the "gravel pit" at West Hill Plantation adjoining the road known as Halse Hill and being part of the inclosure numbered 58 in the parish of Budleigh Salterton on the $\frac{1}{25100}$ Ordnance map of Devonshire Sheet ciii. 3 (2nd edition 1905).

CARLISLE CORPORATION ELECTRIC LIGHTING
(EXTENSION).

Carlisle. Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Mayor Aldermen and Citizens of the City of Carlisle in respect of part of the Rural District of Carlisle in the County of Cumberland.

Short and
collective
titles.

1. This Order may be cited as the Carlisle Corporation Electric Lighting (Extension) Order 1911 and this Order and the Carlisle Corporation Electric Lighting Order 1895 (herein-after called "the principal Order") may be cited together as the Carlisle Corporation Electric Lighting Orders 1895 and 1911.

Incorporation of
Electric
Lighting
(Clauses)
Act 1899
and repeal
of parts of
Carlisle
Corporation
Electric
Lighting
Order 1895.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order and the undertaking authorised by the principal Order and the Undertakers in respect thereof shall be subject to those provisions and so much of the principal Order as is inconsistent with those provisions is hereby repealed without prejudice to anything done or suffered thereunder. Provided that sections 23 and 65 of the said schedule shall apply to the added area herein-after defined as if the Undertakers were the local authority.

Added area
of supply.

3. Subject to the provisions of this Order there shall be added to the area of supply for the purposes of the principal Order as amended by this Order the area (in this Order called "the added area") which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

[1 & 2 GEO. 5.] *Electric Lighting Orders Confirmation* [Ch. clx.]
(No. 1) Act, 1911.

4. The streets and parts of streets (within the added area) throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Second Schedule to this Order.

A.D. 1911.
Carlisle.
Compulsory
works.

5. Subject to the provisions of this Order the Undertakers are specially authorised by this Order to break up the streets and parts of streets not repairable by the local authority and tramways which are mentioned in the Third Schedule to this Order.

Power to
break up
streets and
tramways.

6. This Order shall come into force upon the day when the Act confirming this Order is passed and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

Commence-
ment of
Order.

SCHEDULES.

FIRST SCHEDULE.

Area added by this Order to the area of supply defined by the principal Order.

So much of the rural district of Carlisle in the county of Cumberland as lies within a distance of two miles from the cathedral in the city of Carlisle.

In the case of difference between this description and the area as delineated upon the deposited map the latter shall prevail.

SECOND SCHEDULE.

List of streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains within a period of two years after the commencement of this Order.

PARISH OF STANWIX.

Eden Bridge from the city boundary and Stanwix Bank to Church Street Albert Place Cromwell Crescent St. George's Crescent Cavendish Terrace from Stanwix Bank to Marlborough Gardens Marlborough Gardens from Cavendish Terrace to Carlton Gardens Eden Terrace.

[Ch. clx.] *Electric Lighting Orders Confirmation* [1 & 2 GEO. 5.]
(No. 1) Act, 1911.

A.D. 1911.

PARISH OF ST. CUTHBERT WITHOUT.

Carlisle.

Warwick Road from the city boundary to the boundary of the parish of Wetheral London Road from the city boundary to Gowanlea House Harraby.

THIRD SCHEDULE.

List of streets and parts of streets not repairable by the local authority and tramways which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

(a) STREETS:—

Cromwell Crescent St. George's Crescent Cavendish Terrace from Stanwix Bank to Marlborough Gardens Marlborough Gardens from Cavendish Terrace to Carlton Gardens Eden Terrace.

(b) TRAMWAYS:—

The tramways of the City of Carlisle Electric Tramways Company Limited.

CHICHESTER ELECTRIC LIGHTING (EXTENSION).

Chichester. Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Chichester Electric Light and Power Company Limited in respect of portions of the Rural Districts of Westhampnett and Westbourne in the County of Sussex.

Short title.

1. This Order may be cited as the Chichester Electric Lighting (Extension) Order 1911.

Incorporation
of Electric
Lighting
(Clauses) Act
1899.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order.

Undertakers.

3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the Chichester Electric Light and Power Company Limited of No. 7 Victoria Street in the city of Westminster.

Area of
supply.

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First

[1 & 2 GEO. 5.] *Electric Lighting Orders Confirmation* [Ch. clx.]
(No. 1) Act, 1911.

Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

A.D. 1911.

Chichester.

5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets not repairable by the local authority and the railway and tramway which are mentioned in the Second Schedule to this Order.

Power to
break up
streets rail-
way and
tramway.

6. The streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order.

Compulsory
works.

7. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fourth Schedule to this Order.

Maximum
prices.

8. The sum to be deposited or secured in pursuance of section 5 of the schedule to the Electric Lighting (Clauses) Act 1899 is one hundred pounds in respect of so much of the area of supply as is situate within the rural district of Westhampnett and one hundred pounds in respect of so much of the area of supply as is situate within the rural district of Westbourne.

Deposit.

9. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed and that day for the purposes of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

Commence-
ment of
Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The parishes of Appledram Donnington Hunston Lavant Merston New Fishbourne North Mundham Oving and Westhampnett in the rural district of Westhampnett and the parish of Bosham in the rural district of Westbourne all in the county of Sussex.

[Ch. clx.] *Electric Lighting Orders Confirmation* [1 & 2 GEO. 5.]
(No. 1) Act, 1911.

A.D. 1911.

SECOND SCHEDULE.

Chichester.

List of streets not repairable by the local authority railway and tramway which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

(a) STREETS:—

In the parish of New Fishbourne the roads known as The Broadway The Avenue and The Drive Highland Road and the road running due north and south between The Drive and Highland Road all in the district of Summersdale and all other roads constructed on what is known as the Summersdale Estate The following roadways on bridges over the Chichester to Midhurst line of the London Brighton and South Coast Railway (1) Old Broyle Road in the parish of New Fishbourne (2) Brandy Hole Lane in the said parish (3) Snakes Lane in the parish of Lavant and (4) the highway near Lavant Station in the parish of Lavant The highways at the following points where they cross the Chichester Canal (1) at Hunston in the parish of Hunston (2) at Donnington in the parish of Donnington and (3) at Birdham in the parish of Appledram.

(b) RAILWAY:—

The following level crossings of the London Brighton and South Coast Railway at Fishbourne Junction at Upper Clay Lane and at Lower Clay Lane in the parish of New Fishbourne In the road between Old Fishbourne and Mud Lane at Brooks Lane and at Bosham Station in Ratham Lane in the parish of Bosham At Drayton Station in Drayton Lane in the road leading from Oving Village to Colworth and Woodhorn Lane in the parish of Oving.

(c) TRAMWAY:—

The level crossings of the Hundred of Manhood and Selsey Tramway (1) on the Birdham Road just outside the municipal boundary of the city of Chichester in the parish of Donnington and (2) at Hunston in the parish of Hunston.

THIRD SCHEDULE.

List of streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order.

In the parish of New Fishbourne Lavant Road between the municipal boundary of Chichester and the point where such road

[1 & 2 GEO. 5.] *Electric Lighting Orders Confirmation* [Ch. clx.]
(No. 1) Act, 1911.

enters The Drive at Summersdale the road known as The Broadway between Lavant Road and the turning into Highland Road Highland Road the road known as The Avenue and the road running due north and south between The Avenue and Highland Road all in the district of Summersdale Also Fishbourne Road between the said municipal boundary of Chichester and a point two hundred yards west of the Fishbourne railway junction.

A.D. 1911.

Chichester.

In the parish of Donnington Birdham Road between the said municipal boundary and the junction of Birdham Road with the road leading to Donnington Bridge.

FOURTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression “unit” shall mean the energy contained in a current of one thousand ampères flowing under an electromotive force of one volt during one hour.

SECTION 1.

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter For any amount up to twenty units thirteen shillings and fourpence and for each unit over twenty units eightpence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

[Ch. clx.] *Electric Lighting Orders Confirmation* [1 & 2 GEO. 5.]
(No. 1) Act, 1911.

A.D. 1911.

CIRENCESTER ELECTRIC LIGHTING.

Cirencester. Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to James Herbert Edwards in respect of the Urban District of Cirencester in the County of Gloucester.

Short title.

1. This Order may be cited as the Cirencester Electric Lighting Order 1911.

Incorporation
of Electric
Lighting
(Clauses) Act
1899.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order.

Undertaker.

3. The Undertaker for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 is James Herbert Edwards of 127 Victoria Street in the city and county of Bristol engineer.

Area of
supply.

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited with this Order at the Board of Trade by the Undertaker and signed by an assistant secretary to the Board of Trade.

Compulsory
works.

5. The streets throughout which the Undertaker is to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Second Schedule to this Order.

Maximum
prices.

6. The maximum prices which may be charged by the Undertaker as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Third Schedule to this Order.

Deposit.

7. The sum to be deposited or secured in pursuance of section 5 of the schedule to the Electric Lighting (Clauses) Act 1899 is two hundred and fifty pounds.

Transfer of
powers.

8.—(1) The powers given by this Order shall not be exercised unless within six months or such extended period not exceeding in the whole twelve months which the Board of Trade allow after the commencement of this Order the Undertaker transfers the undertaking to a limited company to be registered under the Companies (Consolidation) Act 1908 for the purpose and within that period the Undertaker may transfer and the said company may take a transfer of the undertaking

[1 & 2 GEO. 5.] *Electric Lighting Orders Confirmation* [Ch. clx.]
(No. 1) Act, 1911.

with the consent of and on such terms and conditions as may be approved by the Board of Trade. A.D. 1911.

Cirencester.

(2) On any such transfer the rights powers authorities obligations and liabilities of the Undertaker shall be transferred to and may be exercised by and shall attach to the said company and that company shall subject to the provisions of this Order become the Undertakers for the purposes of this Order.

9. When the said company become the Undertakers for the purposes of this Order the following provisions shall have effect (namely):—

Power of
purchase by
local au-
thority.

(1) The Cirencester Urban District Council (herein-after called "the council") may by a twelve months' notice in writing expiring at the end of twenty-one years or any subsequent period of five years from the date of the said transfer require the Undertakers to sell and the Undertakers shall on the expiration of such notice sell to the council the undertaking authorised by this Order including all lands buildings works materials and plant suitable to and used by the Undertakers for the purposes thereof:

(2) The price to be paid by the council to the Undertakers shall according as may be stated by the council in their notice be either—

(A) A sum equal to the fair market value of the undertaking as a going concern at the time of the purchase; or

(B) A sum equal to the total amount of capital properly expended on the undertaking with the addition of such an amount as together with any sums paid or available for payment as dividends will make up a cumulative dividend of 7 per cent. upon such capital:

(3) If any question arises as to the price to be paid by the council the same shall be determined by arbitration:

(4) The Board of Trade may determine any other questions which may arise in relation to such purchase and may fix the date from which the purchase is to take effect:

(5) From the date on which the purchase takes effect the undertaking (including all such lands buildings works materials and plant as aforesaid) shall vest in the council freed from any debts mortgages or similar obligations of the Undertakers or attaching to the undertaking and the powers of the Undertakers in relation to the supply of electricity within the area of supply under this Order shall cease and determine and shall vest in the council:

(6) Nothing in this section shall affect the power of the council as the local authority to purchase under section 2 of the Electric Lighting Act 1888.

[Ch. clx.] *Electric Lighting Orders Confirmation* [1 & 2 GEO. 5.]
(No. 1) Act, 1911.

A.D. 1911.

Cirencester.

Commence-
ment of
Order.

10. Except for the purpose of enabling the said transfer to be made to the said company this Order shall not come into force notwithstanding the confirmation thereof by Parliament until the day when such transfer takes effect and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The urban district of Cirencester as constituted at the commencement of this Order (except the detached portion).

SECOND SCHEDULE.

List of streets throughout which the Undertaker is to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order.

Castle Street Market Place Cricklade Street Dyer Street Gosditch Street and Dollar Street.

THIRD SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electromotive force of one volt during one hour.

SECTION 1.

Where the Undertaker charges any consumer by the actual amount of energy supplied to him he shall be entitled to charge him at the following rates per quarter For any amount up to twenty units eleven shillings and eightpence and for each unit over twenty units sevenpence.

[1 & 2 GEO. 5.] *Electric Lighting Orders Confirmation* [Ch. clx.]
(No. 1) Act, 1911.

SECTION 2.

A.D. 1911.

Cirencester.

Where the Undertaker charges any consumer by the electrical quantity contained in the supply given to him he shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertaker under the Board of Trade regulations.

LEOMINSTER ELECTRIC LIGHTING.

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to James Herbert Edwards in respect of the Borough of Leominster in the County of Hereford. *Leominster.*

1. This Order may be cited as the Leominster Electric Lighting Order 1911. *Short title.*

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of sections 83 and 84 of that schedule) are incorporated with and form part of this Order. *Incorporation of Electric Lighting (Clauses) Act 1899.*

3. The Undertaker for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 is James Herbert Edwards of 127 Victoria Street in the city and county of Bristol engineer. *Undertaker.*

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting (Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited with this Order at the Board of Trade by the Undertaker and signed by an assistant secretary to the Board of Trade. *Area of supply.*

5. The streets throughout which the Undertaker is to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Second Schedule to this Order. *Compulsory works.*

6. The maximum prices which may be charged by the Undertaker as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Third Schedule to this Order. *Maximum prices.*

[Ch. clx.] *Electric Lighting Orders Confirmation* [1 & 2 GEO. 5.]
(No. 1) Act, 1911.

A.D. 1911.

Leominster.
Deposit.

7. The sum to be deposited or secured in pursuance of section 5 of the schedule to the Electric Lighting (Clauses) Act 1899 is one hundred pounds.

Transfer of
powers.

8.—(1) The powers given by this Order shall not be exercised unless within six months or such extended period not exceeding in the whole twelve months as the Board of Trade may allow after the passing of the Act confirming this Order the Undertaker transfers the undertaking to a limited company to be registered under the Companies (Consolidation) Act 1908 and approved by the Board of Trade for the purpose.

(2) Within that period the Undertaker may transfer and the company to whom the transfer is to be made may take a transfer of the undertaking with the consent of and on such terms and conditions as may be approved by the Board of Trade by deed approved by that Board.

(3) On any such transfer the rights powers authorities obligations and liabilities of the Undertaker shall be transferred to and may be exercised by and shall attach to the company to whom the transfer is made and that company shall subject to the provisions of this Order become the Undertakers for the purposes of this Order.

(4) If the transfer directed by this Order has not been made before the expiration of the period limited in that behalf in this section the Board of Trade may revoke this Order upon the expiration of that period.

Protection of
fisheries.

9.—(1) Before using the water of any river stream or lake for supplying power for the purpose of generating electricity for the undertaking the Undertaker shall make and fix such channels fish passes gratings and other works and appliances for the protection of the fisheries of the river stream or lake in such position and of such form and mode of construction as the Board of Agriculture and Fisheries direct and the Undertaker shall also carry out any alteration modification or addition which the Board of Agriculture and Fisheries may at any time direct in relation to these works and appliances as necessary or expedient for the proper protection of the fisheries.

(2) The Undertaker shall maintain any such works and appliances as so made and fixed for the time being and if the Board of Agriculture and Fisheries give notice to the Undertaker that any such work or appliance requires repair or renewal the Undertaker shall repair or renew it as directed by the Board within two months of the date on which the notice is given.

(3) If the Undertaker fails to comply with any of the provisions of this section he shall be liable for each failure on summary conviction to a penalty not exceeding twenty pounds and to a further penalty not

[1 & 2 GEO. 5.] *Electric Lighting Orders Confirmation* [Ch. clx.]
(No. 1) Act, 1911.

exceeding five pounds for each day on which the failure continues after conviction therefor. A.D. 1911.

Leominster.

10. Except for the purpose of enabling the transfer directed by this Order to be made this Order shall not come into force notwithstanding the confirmation thereof by Parliament until the day when the transfer takes effect and that day for the purposes of the Electric Lighting (Clauses) Act 1899 shall be the commencement of this Order. Commence-
ment of
Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The borough of Leominster as constituted at the commencement of this Order.

SECOND SCHEDULE.

List of streets throughout which the Undertaker is to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order.

Broad Street High Street Church Street West Street Corn Square
Corn Street Drapers Lane and Etnam Street.

THIRD SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression “unit” shall mean the energy contained in a current of one thousand ampères flowing under an electromotive force of one volt during one hour.

SECTION 1.

Where the Undertaker charges any consumer by the actual amount of energy supplied to him he shall be entitled to charge him at the following rates per quarter For any amount up to twenty units eleven shillings and eightpence and for each unit over twenty units eightpence.

[Ch. clx.] *Electric Lighting Orders Confirmation* [1 & 2 GEO. 5.]
(No. 1) Act, 1911.

A.D. 1911.

SECTION 2.

Leominster.

Where the Undertaker charges any consumer by the electrical quantity contained in the supply given to him he shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertaker under the Board of Trade regulations.

NEWCASTLE-UPON-TYNE (KENTON EXTENSION)
ELECTRIC LIGHTING.

Newcastle.

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 and 1888 to the Newcastle-upon-Tyne Electric Supply Company Limited in respect of an Extension of their existing Area of Supply to include that portion of Kenton which is now included in the City and County of Newcastle-upon-Tyne.

Short title
and construc-
tion of Order.

1.—(1) This Order may be cited as the Newcastle-upon-Tyne (Kenton Extension) Electric Lighting Order 1911 and the Newcastle-upon-Tyne Electric Lighting Order 1893 (herein-after called "the principal Order") and this Order may be cited together as the Newcastle-upon-Tyne Electric Lighting Orders 1893 and 1911.

(2) The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 are not incorporated with this Order.

Undertakers.

2. The Undertakers for the purposes of this Order are the Newcastle-upon-Tyne Electric Supply Company Limited whose registered office is situate at Royal Exchange Buildings Newcastle-upon-Tyne.

Extension
of com-
pany's area
of supply.

3. Subject to the provisions of this Order there shall be added to the area of supply for the purposes of the principal Order the area (herein-after called "the added area") which is described in the schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

Application
of principal
Order to
added area.

4. In the application of the provisions of the principal Order to the added area the following modifications shall have effect unless the context otherwise requires:—

(A) The expression "the undertaking" shall be construed to include the undertaking within the added area:

[1 & 2 GEO. 5.] *Electric Lighting Orders Confirmation* [Ch. clx.]
(No. 1) Act, 1911.

(B) The expression "commencement of this Order" shall mean the day on which the Act confirming this Order is passed: A.D. 1911.
Newcastle.

(C) Section 7 of the principal Order shall not apply to the undertaking within the added area.

5. Section 2 of the Electric Lighting Act 1888 in its application to the undertaking within the added area shall be varied as follows:— Purchase by local authority.

(1) In lieu of the period of forty-two years reckoned as therein mentioned there shall be substituted the period of eleven years reckoned from the third day of July 1911:

(2) The price to be paid by the local authority shall not be less than a sum equal to the capital expenditure reasonably incurred by the Undertakers including the cost of connecting cables from the Undertakers' sub-station at Gosforth and used solely for the purpose of supplying energy within the added area.

6. This Order shall come into force upon the day when the Act confirming this Order is passed. Commencement of Order.

SCHEDULE.

AREA OF SUPPLY.

That portion of the township of Kenton which was included in the city and county of Newcastle-upon-Tyne by the Newcastle-upon-Tyne (Extension) Order 1904.

Printed by EYRE and SPOTTISWOODE, Ltd.,

FOR

ROWLAND BAILEY, Esq., C.B., M.V.O., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LTD., FETTER LANE, E.C.; or
OLIVER AND BOYD, TWEEDDALE COURT, EDINBURGH; or
E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN.

164/5